

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #09	CCRB Case #: 202105056	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 08/14/2021 1:42 AM	Location of Incident: 69th Precinct stationhouse	18 Mo. SOL 2/14/2023	Precinct: 69		
Date/Time CV Reported Sun, 08/15/2021 11:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/25/2021 10:45 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Justin Simms	00000	937542	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Pardeep Dhaliwal	24567	969048	069 PCT
2. PO Jamal Perry	29494	969288	069 PCT
3. PO Denise Garciatorres	12932	969719	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Justin Simms	Abuse: Lieutenant Justin Simms threatened § 87(2)(b) with the use of force.	
B . LT Justin Simms	Abuse: Lieutenant Justin Simms did not process § 87(2)(b) complaint regarding an officer.	
C . LT Justin Simms	Abuse: Lieutenant Justin Simms threatened to arrest § 87(2)(b)	

Case Summary

On August 15, 2021, § 87(2)(b) filed this complaint with IAB, which was received at the CCRB on August 25, 2021, under log number § 87(2)(b).

On August 14, 2021, at approximately 1:42 a.m., § 87(2)(b) went to the 69th Precinct stationhouse to file a complaint against NYPD officers. Upon arriving, he was told by officers that he could not enter the stationhouse or file a complaint; after which, Lieutenant Justin Simms, of the 69th Precinct, exited the stationhouse, threatened to Taser § 87(2)(b). § 87(2)(b) told him that he can no longer go to the stationhouse to file complaints, and threatened to arrest § 87(2)(b) if he was to return to the stationhouse that evening (**Allegation A: Abuse of Authority – Threat of Force**, § 87(2)(g) (**Allegation B: Abuse of Authority – Refusal to process civilian complaint**, § 87(2)(g) (**Allegation C: Abuse of Authority – Threat of Arrest**, § 87(2)(g).

§ 87(2)(b) was not arrested or issued any summonses because of this incident. The investigation received NYPD BWC and stationhouse video footage in relation to this investigation (**Board Review 01**) (**Board Review 02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Justin Simms threatened § 87(2)(b) with the use of force.

Allegation (B) Abuse of Authority: Lieutenant Justin Simms did not process § 87(2)(b) complaint regarding an officer.

Allegation (C) Abuse of Authority: Lieutenant Justin Simms threatened to arrest § 87(2)(b).

§ 87(2)(b) stated that he went to the 69th Precinct stationhouse to file a complaint against NYPD officers about an incident that occurred days prior; however, Police Officers Jamal Perry and Denise Garcia Torres told him that he could not do so because he was not allowed in the stationhouse (**Board Review 03**). The officers told him to leave the stationhouse.

As he was standing at the front of the stationhouse, Lieutenant Simms approached § 87(2)(b) and pointed his Taser at him. In response, § 87(2)(b) began to walk away from Lieutenant Simms and the stationhouse, ultimately leaving.

At the start, Lieutenant Simms' BWC footage depicts him exiting the back door of the stationhouse and walking around the stationhouse to the entrance where § 87(2)(b) was standing (**Board Review 04**). Immediately after § 87(2)(b) sees Lieutenant Simms, at 1:36, § 87(2)(b) says, "What're you gonna do?" Lieutenant Simms responds, "Tase you." As this conversation is happening, Lieutenant Simms is walking toward § 87(2)(b) and § 87(2)(b) is walking backward away from the Lieutenant.

At 1:48, Lieutenant Simms tells § 87(2)(b) that he is no longer allowed at the Precinct stationhouse because there is no reason for him to be there. § 87(2)(b) says that he wants to file a complaint, but Lieutenant Simms states that he cannot do that at the stationhouse anymore. He reiterates the statement at 2:00, saying that § 87(2)(b) no longer has the right to file a complaint at the Precinct stationhouse and would have to file a complaint at another Precinct, IAB or the CCRB. At 2:15, Lieutenant Simms tells § 87(2)(b) that if he returns to the stationhouse that evening, he will be arrested. He then reiterates that § 87(2)(b) is not allowed at the stationhouse.

During his CCRB interview, Lieutenant Simms stated that prior to this incident he knew of § 87(2)(b) and he knew § 87(2)(b) as being prone to shift from calm to violent quickly (**Board Review 05**). While at the Command Desk as the Desk Officer, Lieutenant Simms saw "younger" officers having a "contentious" interaction with § 87(2)(b) via external surveillance cameras. He went outside to interject, picking up and holding a Taser in his hand before exiting from the back of the stationhouse. He held the taser in his hand because he was not wearing a utility belt. He did not speak with the officers who initially dealt with § 87(2)(b) before exiting the

stationhouse and interacting with § 87(2)(b)

After walking around the stationhouse to the front, Lieutenant Simms heard § 87(2)(b) yelling, and that indicated to him that there wasn't an opportunity to speak with § 87(2)(b) calmly. Lieutenant Simms approached § 87(2)(b) and "engaged him," § 87(2)(b) saw the Taser in Lieutenant Simms' hand and "asked him about it," specifically whether he was going to Taser him. In response, Lieutenant Simms told § 87(2)(b) that he would use the Taser if he needed to. While interacting with § 87(2)(b) on that day, Lieutenant Simms did not have reason to Taser § 87(2)(b) despite telling him he may. Lieutenant Simms ultimately told § 87(2)(b) that if he was to return to the stationhouse that evening, he would be arrested.

When asked during his CCRB interview why § 87(2)(b) was not allowed to file a complaint at the stationhouse, Lieutenant Simms stated due to his past experiences with § 87(2)(b) he knew that if he allowed § 87(2)(b) in the stationhouse, it would be likely that officers would need to use force against him. Lieutenant Simms told § 87(2)(b) he would be arrested because he was aware of an open complaint report against § 87(2)(b) for a misdemeanor menacing offense that happened days prior to the incident in question. He did not attempt to arrest § 87(2)(b) in relation to the open complaint before threatening to arrest him.

On April 8, 2022, the investigation obtained complaint report # § 87(2)(b) (Board Review 12). The complaint report lists § 87(2)(b) as the perpetrator of menacing on August 10, 2021. § 87(2)(b) was arrested in relation to that complaint report on September 8, 2021 (Board Review 13).

Patrol Guide Procedure 221-08 (Board Review 06) A CEW should be used as a means of subduing aggressive suspects and emotionally disturbed persons. A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or others present.

Patrol Guide Procedure 207-28 (Board Review 07) Complaints against uniformed members of service may be made at any precinct. For complaints made in person, civilians should be interviewed, given a copy of a "civilian complaint report," and assistance should be furnished if needed. When a complainant is not ready to make their complaint in person, an officer should provide the complainant with the first copy of the civilian complaint report and advise them that the complaint may be delivered in person, taken over the phone, or sent by mail.

Patrol Guide Procedure 208-01 (Board Review 08) Uniformed members of service may arrest an individual without a warrant if there is reasonable cause to believe they committed a crime, whether in the officer's presence or not.

§ 87(2)(g)

§ 87(2)(g)

The Patrol Guide provides alternative options to entering the stationhouse to file a complaint such as providing the complainant with a complaint form to fill out and return later in person or via mail. § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 9

Investigator:	<u>Wassim Abedrabbo</u>	<u>SI Wassim Abedrabbo</u>	<u>4/29/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Monique West</u>	<u>IM Monique West</u>	<u>6/14/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date